

# Gaya Prasad v. U.P. Power Corporation Ltd. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 31 May 2023 · 2023:AHC:122168-DB · Writ - C No. 19274 of 2023 · **Final assessment quashed; fresh order to follow the Supply Code.**

## HEADNOTE

Final assessment dated 21.03.2023 quashed on the licensee's statement that recovery stood withdrawn and a fresh hearing notice had been issued. Respondents left free to pass a fresh order strictly under the procedure prescribed by the U.P. Electricity Supply Code.

## FACTUAL SUMMARY

The petitioner, Gaya Prasad, challenged by writ the final assessment order dated 21 March 2023 passed against him by the U.P. Power Corporation Ltd. His specific case was that he had not been served with any notice of provisional assessment. Before the Division Bench, counsel for the electricity department stated that the impugned recovery had been withdrawn and that a fresh notice had already been issued to afford him a hearing.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::procedure

fresh order after quashing a final assessment

#### HOLDING

Having regard to the licensee's statement that recovery under the final assessment dated 21.03.2023 had been withdrawn and a fresh notice of hearing issued, that assessment is quashed, and any fresh order must be passed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code. ¶ 3-4

**FLAG** No numbered clause; the order refers only to the procedure prescribed under the U.P. Electricity Supply Code.

## PRINCIPLE TAGS

**fresh-order-must-follow-supply-code-procedure** Applied to quash the final assessment of 21.03.2023 once the licensee withdrew the recovery and issued a fresh hearing notice, leaving any fresh order to be made strictly under the Supply Code procedure. ¶ 4

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER NON-SERVICE OF NOTICE OF PROVISIONAL ASSESSMENT, BY ITSELF, INVALIDATES A FINAL ASSESSMENT

The writ was disposed of on the licensee's statement that recovery had been withdrawn and a fresh hearing notice issued. ¶ 2-4

### NOT DECIDED — THE PETITIONER'S LIABILITY AND QUANTUM ON A FRESH ASSESSMENT

Left open to a fresh order passed strictly in accordance with the Supply Code. ¶ 4